or for merely a nominal one (*a*), and no trust is declared of *any part*, then if the conveyance be simply to a *stranger and no intention appear of conferring the beneficial interest*, as the law will not suppose a person to part with property without some inducement thereto, a trust of the *whole estate* (as in the analogous case of uses before the statute of Henry VIII.) will result to the settlor (*b*). And if two joint tenants make such a conveyance without consideration, the equitable interest will result to them in joint tenancy (*c*).

5. **Case of wife or child.**—If the conveyance be to a *wife* (*d*) or *child* (*e*) it will be presumed an advancement, and the wife or child will be entitled beneficially.

6. In a case where a son conveyed an estate to his father, as purchaser on the face of the deed, for the sum of £400, and then filed a bill against the devisees of the father for a re-conveyance, on the ground that the son never intended to part with the beneficial interest, but meant only to facilitate the raising of a sum upon mortgage by means of this machinery, Sir J. Leach held, that since the Statute of Frauds parol evidence was inadmissible to prove a trust for the son, and that as there was no fraud or misapprehension, but the meaning was that the father should exercise towards the world at large the beneficial ownership, there was no resulting or constructive trust, and that the devisees must keep the estate. But the Court decreed the son as the ostensible

(*a*) See Hayes *v.* Kingdome, 1 Vern. 33; Sculthorp *v.* Burgess, 1 Ves. jun. 92.

(*b*) Duke of Norfolk *v.* Browne, Pr. Ch. 80; Warmen *v.* Seamen, 2 Freem. 308, *per Cur.*; Hayes *v.* Kingdome, 1 Vern. 33; Grey *v.* Grey, 2 Sw. 598; *per* Lord Nottingham; Elliot *v.* Elliot, 2 Ch. Ca. 232, *per eundem*; Attorney-General *v.* Wilson, 1 Cr. & Phil. 1; and see Sculthorp *v.* Burgess, 1 Ves. jun. 92; Lady Tyrrell's case, 2 Freem. 304; Ward *v.* Lant, Pr. Ch. 182; Davies *v.* Otty (No. 2), 35 Beav. 208. But in Lloyd *v.* Spillet, 2 Atk. 150, and Young *v.* Peachey, ib. 257, Lord Hardwicke was apparently of opinion that, since the Statute of Frauds, there are only two cases of resulting trust, viz.: 1st, Where an estate is purchased in the name of a stranger; and 2ndly, Where on a voluntary conveyance a trust is declared of part, in which case the residue results. It would seem to follow that, in his opinion, should a voluntary conveyance be made and no trust at all be expressed, the grantee would take the beneficial interest to his own use; and see Hutchins *v.* Lee, 1 Atk. 447.

(*c*) Rex *v.* Williams, Bunbury, 342.

(*d*) See Christ's Hospital *v.* Budgin, 2 Vern. 683.

(*e*) Jennings *v.* Sellick, 1 Vern.